AUSTRALIAN COMPETITION & CONSUMER COMMISSION

APEM Group – Resource Strategies

MN-85049

Phase 1 Determination

Acquisition may be put into effect

30 October 2026

1. Determination and statement of reasons

Notified acquisition	APEM Group Pty Ltd (**APEM**)'s proposed acquisition of 100% of the issued share capital in Resource Strategies Pty. Ltd. (**Resource Strategies**) (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, APEM, is a Victoria-based environmental consulting company that provides services to clients in Australia, across a number of sectors including mining (coal and critical minerals), renewable energy, infrastructure and the built environment. APEM and its subsidiaries (AARC, Attexo and Biosis) provide environmental consulting services primarily relating to planning and approvals, environmental management, ecology and heritage matters. The target, Resource Strategies, is a Queensland-based environmental and regulatory consulting company that provides services to clients in Australia, primarily in the mining sector (coal and critical minerals). Its services include major approvals coordination, strategic advisory and due diligence services, operational support and compliance assistance, and rehabilitation and closure support.
Overlap between the Parties	APEM and Resource Strategies (together, the **Parties**) overlap in the supply of environmental consultancy services.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the *Competition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and feedback from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • APEM and Resource Strategies are not close competitors. • The market share aggregation resulting from the Acquisition is estimated to be low. • The merged firm would continue to face competition from multiple alternative suppliers of environmental consultancy

	services in Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act